
The New Epstein Emails Humiliate One Trump Official More Than Most

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House Democrats released [a batch of emails](#) on Wednesday that suggest President Donald Trump was aware of Jeffrey Epstein's sex crimes and did nothing to report them. The messages, sent by Epstein to his associates—including chief accomplice Ghislaine Maxwell—contradict the White House's claims that Trump had no real relationship with Epstein and was ignorant of his criminal offenses. They also seem to discredit Maxwell's recent testimony to Deputy Attorney General Todd Blanche, who [solicited](#) her suspiciously rosy account of Trump's role this past summer.

On this week's Slate Plus bonus episode of [Amicus](#), co-hosts Dahlia Lithwick and Mark Joseph Stern spoke about Blanche's latest embarrassment by the Epstein scandal, as well as his dangerous counteroffensive against the legitimacy of the judiciary. A preview of their conversation, below, has been edited and condensed for clarity.

Dahlia Lithwick: Deputy Attorney General Todd Blanche—who has been signing off willy-nilly on the Justice Department's fabrications in court—got pantsed by this email dump. There's no other word for it. On so many levels, this is just devastating for him. Can you lay out the lies and fabrications and cover-ups?

Mark Joseph Stern: So Blanche interviewed Epstein's accomplice, Ghislaine Maxwell, in July as part of an effort to exonerate Trump from the Epstein affair. A week later, she was [transferred](#) to a minimum-security prison, reportedly with special approval by the Trump administration, where she gets [extraordinary privileges](#) like customized meals, playtime with puppies, unlimited toilet paper, special access to guests with computers. It all looked a lot like a quid pro quo. During that interview, Maxwell did what Blanche wanted her to do, which was to claim that Trump and Epstein weren't close friends at all, and Trump didn't know anything about Epstein's sex crimes. The Justice Department then [publicly released](#) the interview.

I think the new emails just flatly contradict Maxwell's account to Blanche. They suggest that Trump knew about Epstein's abuses but did nothing to expose them. For instance, Epstein wrote: "Trump knew of" the investigation into his crimes "and came to my house many times during that period." He told the journalist Michael Wolff that "of course" Trump "knew about the girls." And he told Maxwell that Trump was "the dog that hasn't barked" because he evidently did *not* tell investigators about Epstein's misconduct despite spending "hours" at Epstein's house with one of his victims.

The upshot here is that Trump knew something; he probably knew a lot. And he could have said what he knew to law enforcement, but he stayed silent instead. That cannot be squared with what Maxwell told Blanche, and Blanche then told to the public. Of course, Blanche is Trump's former criminal defense attorney, and he's used to spinning fables to protect Trump. But when you're deputy attorney general, and your client is supposed to be the American people, you're expected to adhere to a higher standard. That expectation has clearly gone out the window. And whatever credibility Blanche may have had with the courts—and even just the American people—should be gone after this email dump.

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There was another Blanche infraction this week that is, in many ways, equally shocking, even if it's not getting the kind of press traction that the Maxwell interview did. When the Federalist Society held its annual convention in D.C. this past week, Blanche got up and [railed against](#) state bars that are fielding ethics complaints against Trump administration officials. He went on to declare that the administration is “at war” with “rogue activist judges,” by which I think he means any judge who ever ruled against Donald Trump for any reason, including Trump judges and Bush judges.

We're used to this level of slander now—Trump officials impugning the integrity of liberal judges, impugning attempts by state bars to do ethics enforcement. But there's another layer here. The deputy attorney general basically suggested that the judiciary is a subagency of the executive branch. And judges' job is to rubber-stamp Trump's agenda in every particular, or face impeachment and threats and “a war” on the part of the good members of the Federalist Society who are coming for them.

Blanche's statement and its implications are just the logical conclusion of the widespread belief in this administration that Trump cannot break the law because he represents the true will of the people. And by extension, anyone who stands in his way has to be punished for what more or less amounts to treason against the state—if Trump is the state, as Blanche and his comrades seem to believe. We've known for a while that they do believe all this: You see it between the lines of their court filings, like [when they cite](#) the “mandate of the electorate” in lieu of a legal argument to justify what Trump is doing. But until recently, I think that these guys have tried to maintain plausible deniability by showing some measure of respect as officers of the court.

Now that is all out the window. The mask is fully off with this speech. Blanch, the deputy AG, is telling judges who rule against him: *We are at war with you*. And the question then is: Will the Supreme Court care? Because the Supreme Court's Republican appointees have arguably done more than anyone to foster this “culture of disdain” toward the judiciary, as Justice Ketanji Brown Jackson [put it](#), by capitulating to Trump's power grabs and throwing their lower court colleagues under the bus.

I guess these justices still think they can draw the line whenever they want, and the administration will respect that. But if the Justice Department's leaders think they're at war with the courts, then

any judge who rules against them is an enemy combatant. And the rule of law has to take a back seat to the logic of the battlefield, where winning is all that matters and victory justifies everything. I just don't think that is the mindset of a government that is ever prepared to accept a Supreme Court decision against it.

I want to read a [statement](#) in response to Blanche's remarks by New York State Bar Association president Kathleen Sweet because it's pretty powerful. Sweet says: "Any lawyer who abandons their oath to the Constitution and who intentionally misrepresents facts or law in court is properly subject to discipline, even if they work for the Department of Justice. The judiciary is a coequal branch of our government. It is not an inferior entity to be treated with disdain as an irksome impediment to the will of the executive branch."

There's this construction that when you're caught in a lie, you double down, you attack, you insult, you deflect, you distract, you threaten judges and bars and bar associations. The audience of one, Donald Trump, loves that kind of talk. But Todd Blanche and the folks at DOJ—who are, it would seem, willfully misrepresenting facts and law in courts—don't just answer to Donald J. Trump. They also answer to the infrastructure of the law. Reminding them of that by calling them out and pushing back is a really important power that everybody has.

I couldn't agree more. Go file [those ethics complaints](#). Trump might be able to pardon all of his cronies, but state bars can still disbar them. A pardon doesn't stand in the way of that. Just keep that in mind, Mr. Deputy Attorney General.

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